

LEGAL NOTICE

Date: [Insert Date]

From:

[Name of Advocate]

Advocate

[Address of Advocate]

Contact: [Phone Number]

Email: [Email Address]

To:

The Manager

[Name of Insurance Company]

[Address of Insurance Company]

Subject: Legal Notice for Settlement of Insurance Claim Under Policy No. _____

Under instructions and on behalf of my client, Mr./Ms. [Client's Name], son/daughter of Mr./Ms. _____, residing at _____, I hereby serve you with the following legal notice.

1. Client's Background and Policy Details

My client is the holder/nominee under Insurance Policy No. _____, issued by your company, covering the period from _____ to _____. This policy provides coverage for _____ (e.g., life, health, motor vehicle, property).

2. Incident Details

On [Insert Date], an unfortunate incident occurred, resulting in _____ (e.g., the death of the insured, an accident, theft, health issues, or property damage).

3. Claim Submission and Non-Compliance

Following the incident, my client promptly notified your office on [Insert Date] and submitted a claim on [Insert Date]. The claim was accompanied by all necessary documents, including:

- Copy of the policy document.
- Duly filled claim form.
- Relevant incident reports (e.g., FIR, medical records, death certificate, repair bills).
- Supporting photographs or videos (if applicable).

Despite complying with all terms of the policy and submitting the required documents, your company has not processed or settled the claim. This inaction constitutes a breach of the Insurance Regulatory and Development Authority of India (IRDAI) Protection of Policyholders' Interests Regulations, 2017, the terms of the policy, and the Consumer Protection Act, 2019.

4. Legal Provisions and Impact

As per the law, insurance claims must be settled within a reasonable time. Your delay or denial amounts to a deficiency in service, causing undue financial and emotional distress to my client.

5. Demand for Resolution

Through this notice, I demand that you:

1. Approve and settle the insurance claim for an amount of Rs. _____ (Rupees _____ only), along with interest at the rate of ____% per annum from the date of claim submission.
2. Pay compensation of Rs. _____ (Rupees _____ only) for mental harassment and inconvenience caused to my client.
3. Reimburse my client's legal expenses amounting to Rs. _____.

6. Deadline for Response

You are required to respond to this notice within **15 days** of its receipt, either by settling the claim or providing a detailed explanation for the delay/denial.

7. Consequences of Non-Compliance

Failure to comply with this notice will compel my client to initiate legal proceedings against your company. This includes filing a complaint with the Insurance Ombudsman under the Public Grievance Rules, 1998, and/or filing a case with the appropriate Consumer Dispute Redressal Commission under the Consumer Protection Act, 2019. Any costs, liabilities, and consequences arising from such actions shall solely be borne by your company.

This notice is issued without prejudice to my client's rights and remedies available under the law.

Kindly treat this matter with urgency and respond within the stipulated timeframe.

Yours faithfully,

(Signature)

[Advocate's Name]

Advocate

Bar Council Enrollment No.: _____